

Court No. - 21

Case :- WRIT - C No. - 3440 of 2014

Petitioner :- Hem Chand Saini And Another

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Shailesh Kumar Pathak

Counsel for Respondent :- C.S.C., Chandan Agrawal

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Anil Kumar Agarwal,J.

The petitioners who appear to be of the downtrodden class, are lessees of a particular land for housing site said to have been granted to the petitioners in terms of Section 122-C of the U.P. Z.A.L.R. Act, 1950. The said leases became subject matter of dispute later on, and Writ Petition No. 15079 of 2010 was filed, in which an interim order was passed not to dispossess the petitioners. The lease was granted in 1997 and the petitioners allege that they have constructed their houses and are residing in the same since then.

The aforesaid period on a simple calculation comes to be about 17 years. The petitioners have applied for a genuine electricity connection and they are also prepared to fill up an indemnity bond.

Learned counsel for the petitioners submits that the Sub Divisional Officer, respondent no. 2, is not entertaining the application on the ground that the leases of the petitioners are disputed and under litigation, and further in the absence of any proof of ownership or occupancy, the petitioners cannot be granted the electricity connection.

Since there is no order in writing, we presume that the applications are still to be entertained and considered for grant of electricity in terms of the Electricity Supply Code, 2005.

Consequently, we direct the respondent no. 2, represented by Sri Chandan Agarwal, to show cause as to why the electricity connection is being not granted to the petitioners forthwith, as they are prima facie in occupancy of the premises and which can be granted either in the shape of a permanent connection or temporary connection, upon taking an indemnity bond from the petitioners. Their leases and possession are prima facie protected by the orders of the High Court in Writ Petition No. 15079 of 2010. The respondent no. 2 is put to notice that in the event the petitioners are further harassed, this Court may proceed to take appropriate action against him.

List after two weeks.

A certified copy of the order will be produced by the petitioners before the respondent Sub Divisional Officer, who shall guide the petitioners and shall take necessary steps for providing the electricity connections that shall be subject of the writ petition and the indemnity as required by rules.

Order Date :- 21.1.2014

SR



2025:AHC:223540-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 3440 of 2014

Hem Chand Saini And Another

.....Petitioner(s)

Versus

State of U.P. and Another

.....Respondent(s)

Counsel for Petitioner(s)	:	Shailesh Kumar Pathak
Counsel for Respondent(s)	:	C.S.C., Chandan Agarwal, Shrawan Kumar Tripathi

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**HON'BLE MANOJ KUMAR GUPTA, J.
HON'BLE RAJIV LOCHAN SHUKLA, J.**

1. This case is listed under the caption 'Oldest Pending Cases in this High Court, for Priority Hearing'.
2. None present to press the petition. Shri Shrawan Kumar Tripathi, learned counsel has appeared on behalf of respondent No. 2.
3. Dismissed for want of prosecution.

(Rajiv Lochan Shukla,J.) (Manoj Kumar Gupta,J.)

December 12, 2025

Mukesh Kr.